

25STCV32662 25STCV32662

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-08-06

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Case Number: 25STCV32662 Hearing Date: August 6, 2026 Dept: 517

Defendant's demurrer to the Plaintiffs' First Amended Complaint ("the FAC") is sustained with leave to amend.

In the FAC, the Plaintiffs assert claims on behalf of themselves individually and a class of similarly situated persons under Business and Professions Code section 17529.5. That statute contains three subsections that may serve as a foundation for relief. In the Court's view, the allegations in the FAC fail to state a claim under any of the three subsections.

At the hearing today, the Court will explain the basis for its ruling, using the Defendant's reply brief as the framework for the discussion.